

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF UVARKINA AND OTHERS v. RUSSIA

(Applications nos. 70089/12 and 40 others –
see appended list)

JUDGMENT

STRASBOURG

13 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Uvarkina and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers and participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies, and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia*, no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia*, no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia*, no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having due regard to the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 61-65, 13 February 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as

to administrative escorting to and detention in a police station beyond three hours without any justification; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, related to the absence of a prosecuting party in criminal proceedings governed by the Code of Administrative Offences ("the CAO"); *Lashmankin and Others v. Russia,* nos. 57818/09 and 14 others, §§ 402-78, 7 February 2017, regarding restrictions on location or time of public events; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, related to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants also raised other complaints under various Articles of the Convention.

15. Firstly, the Court considers that, in view of its findings in paragraphs 11 and 13 above, there is no need to deal separately with the remaining complaints raised by some applicants under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings.

16. Furthermore, the Court has examined the rest of the complaints raised by the applicants and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

17. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

18. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

19. Having regard to the nature of the complaint raised by Mr Ishutin in application no. 70440/17, the Court considers that the finding of a violation, triggering the respondent State's obligation to take measures aimed at ensuring the respect of the right to freedom of assembly indicated in the judgment of *Alekseyev and Others v. Russia*, nos. 14988/09 and 50 others, §§ 27-29, 27 November 2018, constitutes sufficient just satisfaction in that case (see, for a similar approach, *Alekseyev and Others v. Russia*

[Committee], nos. 26624/15 and 76 others, § 18, 16 January 2020, *Zverev and Others v. Russia* [Committee], nos. 26363/18 and 2 others, § 15, 7 July 2022, and *Taratunin and Others v. Russia* [Committee], nos. 2051/18 and 4 others, § 14, 28 July 2022)

20. As to the remaining applicants, regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention and *declares* the remainder of the applications inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds* that the finding of the violation of Article 11 in respect of Mr Ishutin in application no. 70440/17 constitutes in itself sufficient just satisfaction;

7. *Holds*
   (a) that the respondent State is to pay the remaining applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Faris Vehabović
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (restrictions on the location, time or manner of conduct of public events)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	70089/12 06/10/2012 and 11801/18 16/02/2018	**Svetlana Vladimirovna UVARKINA** 1975	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Protest against the results of 2011 Parliamentary elections Syktyvkar 10/12/2011 Anti-corruption rally Syktyvkar 26/03/2017	Article 20.2 § 2 of CAO Article 20.2 § 5 of CAO	administrative fine of RUB 500 administrative fine of RUB 10,000	Supreme Court of the Komi Republic 18/07/2013 Supreme Court of the Komi Republic 16/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
2.	14146/14 31/01/2014 and 17361/19 18/03/2019	**Aleksey Nikolayevich ZHITNIKOV** 1978	Laptev Aleksey Nikolayevich Moscow	Rally in support of the "March of Millions" Perm 12/06/2013 Rally against the pension reform Perm 09/09/2018	Article 20.2 § 5 of CAO Article 20.2 § 6.1 of CAO	administrative fine of RUB 10,000 administrative detention of 15 days	Perm Regional Court 01/08/2013 Perm Regional Court 18/09/2018	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 09/09/2018 at 6.40 p.m. the applicant was taken to a police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 of CAO) and achieve the objectives set	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 6.1 of CAO; Prot. 7 Art. 2 – delayed review of conviction by a higher tribunal – the sentence of administrative detention imposed on the applicant by the first-instance court was executed immediately on 10/09/2018, on account of the lack of suspensive effect of an appeal under the CAO.	
3.	52481/17 08/07/2017 and 74992/17 19/09/2017	**Irina Aleksandrovna YATSENKO** 1981	Zboroshenko Nikolay Sergeyevich Mytishchi	Political rally Moscow 25/08/2016 "Readings of the Russian Constitution" Moscow 12/09/2016 "Readings of the Russian Constitution" Moscow	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	administrative fine of RUB 15,000 administrative fine of RUB 10,000 administrative fine of RUB 15,000	Moscow City Court 16/01/2017 Moscow City Court 24/03/2017 Moscow City Court 26/10/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO (events of 12/09/2016 and 12/05/2017); Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 12/09/2016 and 12/05/2017 the applicant was taken to a police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 of	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				12/05/2017				CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity.	
4.	69791/17 20/09/2017	**Raushan Faizovich VALIULLIN** 1984	Khrunova Irina Vladimirovna Kazan	Anti-corruption rally Naberezhnye Chelny 26/03/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 16/08/2017		3,500
5.	70440/17 07/09/2017	**Kirill Dmitriyevich NIKOLENKO** 1989 **Kirill Valeryevich ISHUTIN** 1984	Zhdanov Ivan Yuryevich Vilnius	Anti-corruption rally Vladimir (Mr Nikolenko) 12/06/2017	Article 20.2 § 2 of CAO (Mr Nikolenko)	administrative fine of RUB 25,000 (Mr Nikolenko)	Vladimir Regional Court 02/08/2017 (Mr Nikolenko)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 2 of CAO in respect of Mr Nikolenko; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - local administration's refusal to approve the opposition march on 29/04/2017 organised by Mr Nikolenko and Mr Ishutin (final decision Supreme Court of the Russian Federation, 22/02/2018).	3,500 (Mr Nikolenko)
6.	70491/17 07/09/2017 and 21716/19	**Dmitriy Aleksandrovich TETERIN** 1979	Terekhov Konstantin Ilyich Moscow and	Anti-corruption rally Naberezhnye Chelny 26/03/2017	Article 20.2 § 1 of CAO	administrative fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 07/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings under Article 20.2 § 1 of CAO;	4,000

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	08/04/2019		Akhtyamova Chulpan Salavatovna Kazan	Rally against the pension reform Naberezhnye Chelny 09/09/2018	Article 20.2 § 1 of CAO	administrative fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 17/10/2018	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 09/09/2018 and 18/09/2018 the applicant was taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity.	
7.	4522/18 25/12/2017	**Maksim Sergeyevich TERESHKIN** 1984	Sidelnikova Polina Aleksandrovna Vladivistok	Anti-corruption rally Vladivostok 26/03/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Primorye Regional Court 28/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
8.	4552/18 12/01/2018	**Andrey Sergeyevich MELKHOV** 1988 **Vladimir Valeryevich SOLDATOV** 1990	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Anti-corruption rally Ukhta 26/03/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 5,000	Supreme Court of the Komi Republic 12/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 26/03/2017 the applicants were taken to the police station as administrative suspects: no evidence/assessment that it was impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspects' identity; detention from 2.25 p.m. to 6.15 p.m. (Mr Melkhov) and from 2.25 p.m. to	4,000 (Mr Melkhov) 4,000 (Mr Soldatov)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								7.25 p.m. (Mr Soldatov) with no justification; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	
9.	4847/18 17/01/2018	**Anton Borisovich RASIN** 1989	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally Vladivostok 12/06/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Primorye Regional Court 23/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
10.	5195/18 17/01/2018	**Mariya Igorevna ZINCHENKO** 1990	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally Vladivostok 26/03/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Primorye Regional Court 02/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - on 26/03/2017 the applicant was taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	4,000
11.	5327/18 08/01/2018	**Vyacheslav Ilyich GIMADI**	Terekhov Konstantin Ilyich	Anti-corruption rally	Article 20.2 § 5 of CAO	administrative fine of RUB 20,000	Moscow City Court	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a	3,500

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	and 7933/19 25/01/2019	1985	Moscow and Zhdanov Ivan Yuryevich Vilnius	Moscow 26/03/2017			18/08/2017	prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO; Art. 11 (1) - restrictions on location, time or manner of conduct of public events – Moscow city administration's numerous refusals to approve public meetings with A. Navalnyy in Pushkinskaya Square in Moscow between 30/09/2017 and 16/12/2017 (final decisions were given by the Supreme Court of the Russian Federation on 14/09/2018, 04/10/2018, 05/10/2018, 18/10/2018, 26/10/2018; 23/11/2018 and 12/12/2018).	
12.	7861/18 10/01/2018	**Maksim Anatolyevich RAZMETOV** 1967		Political march St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	St Petersburg City Court 27/06/2017 (copy received on 20/07/2017)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
13.	11830/18 02/03/2018	**Radislav Rafailovich FEDOROV** 1983	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally Naberezhnye Chelny 26/03/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 13/09/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500

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14.	24202/18 08/05/2018	**Yuriy Yuryevich VOLOBUYEV** 1968	Terekhov Konstantin Ilyich Moscow	Political rally Smolensk 07/10/2017	Article 20.2 § 2 of CAO	administrative fine of RUB 20,000	Smolensk Regional Court 14/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 2 of CAO.	3,500
15.	28408/18 30/05/2018	**Maksim Dmitriyevich SOLODNIKOV** 1998	Pershakova Yelena Yuryevna Moscow	Political rally Perm 07/10/2017	Article 20.2 § 5 of CAO	community work of 20 hours	Perm Regional Court 30/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
16.	30475/18 14/06/2018 and 8274/20 21/01/2020	**Mikhail Mikhaylovich SILICH** 1938	Yefremova Yekaterina Viktorovna Moscow	Political rally Moscow 08/10/2017 Rally for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	administrative fine of RUB 2,000 administrative fine of RUB 5,000	Moscow City Court 16/03/2018 Moscow City Court 24/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
17.	35074/18 12/07/2018	**Irina Alekseyevna ILYINA** 1961	Yelanchik Oleg Aleksandrovich Moscow	Political rally Moscow 14/06/2017	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Moscow City Court 12/01/2018	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - on 14/06/2017 the applicant was taken to a police station as an administrative suspect: no	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								evidence/assessment that it was impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	
18.	37025/18 25/07/2018	**Konstantin Matveyevich SALTYKOV** 1998	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy "Strike of voters" Moscow 28/01/2018	Article 20.2 § 8 of CAO and Article 19.3 § 1 of CAO	administrative detention of 30 days and administrative detention of 15 days	Moscow City Court 08/02/2018 (two decisions)	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 28/01/2018 the applicant was taken to a police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; detention at the police station from 2.40 p.m. on 28/01/2018 to 1.20 p.m. on 29/01/2018 with no justification; the record of administrative arrest was compiled only eight hours after the applicant's arrest and escorting to the police station;	5,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings under Article 20.2 § 5 of CAO and under Article 19.3 § 1 of CAO.	
19.	41140/18 25/07/2018	**Anton Sergeyevich GRACHEV** 1980		Political rally Gatchina, Leningrad Region 09/03/2018	Article 20.2 § 2 of CAO	administrative detention of 5 days	Leningrad Regional Court 20/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 2 of CAO; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - local administration's refusal to approve the locations and dates of political rallies on 07/10/2017 and 08/10/2017 (final decision Supreme Court of the Russian Federation, 15/08/2018).	5,000
20.	50045/18 10/10/2018	**Semen Sergeyevich LASKIN** 1990	Zhdanov Ivan Yuryevich Vilnius	Political rally "He is not our tsar" Voronezh 05/05/2018	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Voronezh Regional Court 26/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - local administration's refusal to approve the location and date of the political rally "Strike of voters" on 28/01/2018 (final decision by the Supreme Court of the Russian Federation, 25/05/2018).	3,500

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21.	50624/18 10/10/2018	**Nikita Olegovich RYAZHSKIKH** 1999	Zhdanov Ivan Yuryevich Vilnius	Political rally "He is not our tsar" Voronezh 05/05/2018	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Voronezh Regional Court 04/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - local administration's refusals to approve the locations and dates of four public events planned between 10/11/2017 and 25/11/2017 (final decisions were given by the Supreme Court of the Russian Federation 23/07/2018 and 18/09/2018).	3,500
22.	56385/18 17/11/2018	**Aleksandra Andreyevna SHINKAREVA** 1998	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Political rally "He is not our tsar" Irkutsk 05/05/2018	Article 20.2 § 3 of CAO	community work of 50 hours	Irkutsk Regional Court 18/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 3 of CAO.	3,500
23.	11398/19 15/02/2019 and 52155/19 20/09/2019	**Ivan Yuryevich ZHDANOV** 1988	Zamyatin Yevgeniy Mikhaylovich Berlin Pomazuyev Aleksandr Yevgenyevich	Rally against the pension reform Moscow 09/09/2018	Article 20.2 § 8 of CAO Article 20.2 § 2 of CAO	administrative fine of RUB 250,000 administrative fine of RUB 25,000	Moscow City Court 12/04/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 25/10/2018 and 27/07/2019 the applicant was taken to a police station as an administrative suspect: no evidence/assessment that it was	7,000

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	and 9303/20 31/01/2020 and 30159/20 21/05/2019		Vilnius Los Vladlen Kornelevich Vilnius	Rally for fair elections to Mosgorduma Moscow 14/07/2019 Rally for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	administrative detention of 15 days	Moscow City Court 26/02/2020 Moscow City Court 02/08/2019	impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; detention at the police station from 9.25 p.m. on 27/07/2019 to 8.30 p.m. on 29/07/2019 with no justification; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of administrative-offence proceedings under Article 20.2 § 2, Article 20.2 § 6.1 and Article 20.2 § 8 of CAO; Art. 11 (1) - restrictions on location, time or manner of conduct of public events – Moscow City administration's refusals to approve the locations and dates of five public meetings with A. Navalnyy planned between 29/09/2017 and 06/11/2017 (final decisions were given by the Supreme Court of the Russian Federation on 24/08/2018, 27/08/2018, 17/09/2018 and 23/11/2018).	
24.	18503/19 21/03/2019	**Timur Kamalutdinovich RASULOV** 1998	Peredruk Aleksandr Dmitriyevich St Petersburg	"Disappearing Constitution" protest St Petersburg 10/10/2018	Article 20.2 § 8 of CAO	community work of 100 hours	St Petersburg City Court 29/01/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 8 of CAO.	3,500

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25.	22911/19 10/04/2019	**Illarion Yevgenyevich LITVINOV** 1994	Zubarev Dmitriy Vladimirovich Vladivostok	Rally against the pension reform Vladivostok 01/07/2018	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Primorye Regional Court 24/12/2018	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 28/07/2018 the applicant was taken to a police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	4,000
26.	22914/19 10/04/2019	**Tatyana Yuryevna KHARDINA** 2000	Zubarev Dmitriy Vladimirovich Vladivostok	Rally against the pension reform Vladivostok 01/07/2018 Rally against the pension reform Vladivostok	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	administrative fine of RUB 10,000 administrative fine of RUB 10,000	Primorye Regional Court 27/11/2018 Primorye Regional Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 04/07/2018 at 1.50 p.m. and on 15/09/2018 at 2.10 p.m. the applicant was taken to a police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile	5,000

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				09/09/2018 Rally against the pension reform Vladivostok 15/09/2018	Article 20.2 § 5 of CAO	administrative fine of RUB 5,000	09/01/2019 Primorye Regional Court 15/11/2018	the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; detention in the police station from 3 p.m. on 15/09/2018 to 2.10 p.m. on 17/09/2018 with no justification; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of administrative-offence proceedings under Article 20.2 § 5 of CAO.	
27.	6929/20 14/01/2020	**Ivan Mikhaylovich ZVYAGIN** 1992	Popkov Aleksandr Vasilyevich Sochi	"Monstration" public event Kursk 01/05/2019	Article 20.2 § 1 of CAO	administrative fine of RUB 10,000	Kursk Regional Court 13/08/2019		3,500
28.	6955/20 14/01/2020	**Sergey Vladimirovich BAZHENOV** 1969	Popkov Aleksandr Vasilyevich Sochi	"Monstration" public event Kursk 01/05/2019	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Kursk Regional Court 20/08/2019		3,500
29.	6957/20 14/01/2020	**Nadezhda Igorevna KOLYCHEVA** 1991	Popkov Aleksandr Vasilyevich Sochi	"Monstration" public event Kursk 01/05/2019	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Kursk Regional Court 27/08/2019		3,500
30.	6962/20 14/01/2020	**Yelena Vladimirovna VETROVA** 1972	Popkov Aleksandr Vasilyevich Sochi	"Monstration" public event Kursk 01/05/2019	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Kursk Regional Court 13/08/2019		3,500

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31.	38358/20 22/07/2020	**Petr Ivanovich KIKILYK** 1944	Ruchko Irina Yuryevna Yekaterinburg	Political rally Degtyarsk, Sverdlovsk Region 13/07/2019	Article 20.2 § 2 of CAO	administrative fine of RUB 20,000	Sverdlovsk Regional Court 23/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 13/07/2019 the applicant was taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; detention from 3.30 p.m. on 13/07/2019 to 11.45 a.m. on 14/07/2019 with no justification; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 2 of CAO.	4,000
32.	38452/20 18/06/2020	**Matvey Alekseyevich ALEKSANDROV** 2000	Eysmont Mariya Olegovna Moscow	Political rally Moscow 13/10/2019	Article 20.2 § 5 of CAO	administrative fine of RUB 10,000	Moscow City Court 18/12/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – on 13/10/2019 the applicant was taken to a police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence records (Art. 27.2 § 1 of CAO) and achieve the objectives set	4,000

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								out in Art. 27.1 of CAO, e.g. to establish the suspect's identity; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	

[1] Plus any tax that may be chargeable to the applicants.